**IN THE DISTRICT COURT 'A' SITTING AT KOFORIDUA THIS TUESDAY, 3RD JUNE 2025 BEFORE H/W NANA AMA DABBAH FYNN NKANSAH(MRS)**

**SUIT NO.: B4/7/23**

**THE REPUBLIC**

**VRS**

**KWAKU OFORI**

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**JUDGMENT**

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INTRODUCTION

The Accused person was arraigned before the Court on 24th February 2023 charged with the following:

1. Count One: Assault contrary to Section 84 of the Criminal Offences Act, 1960(Act 29).

2. Count Two: Engaging in domestic violence contrary to Section 1(b)(i) of the Domestic Violence Act, 2007, Act 732.

FACTS

The facts of the case as attached to the charge sheet and presented at the commencement of the trial are that the complainant, Ivy Yeboah, age 29 years is unemployed and resides at Adweso whilst the Accused, Kwaku Ofori age 52 is an ex-

serviceman and resides in the US. The complaint and Accused have been married for 7 months. The Accused has a hotel at Adweso which the complainant has been solely operating in his absence. On 11/2/2023, the Accused returned to Koforidua and met his wife and a misunderstanding ensued between them during which the Accused told the complainant to pack her belongings and leave the hotel. Complainant then went to her room in the hotel to pack her belongings and the Accused followed her to collect his engagement ring from her. Accused person then detected that complainant had already packed some of the belongings for the engagement and requested complainant not to take those items. Accused got angry and pushed the complainant down. When the complainant got up, Accused kicked her in the abdomen and pulled her out the door thereby depriving her access to the room since then. On 13/2/23, complainant reported the incident to DOVVSU where she was issued with police medical form to attend hospital which she did. She returned the form and it reads;

'*Superficial abrasions on the left hand following an alleged physical assault'*. On 17/2/23, Accused was arrested for investigations and in his caution statement, he stated that complainant struggled with him when he was locking her door. Accused was charged with the said offences.

THE BURDEN OF PROOF

**THE LAW AND THE EVIDENCE REQUIRED**

The required standard of proof is codified under the Evidence Act (NRCD 323) in at least three sections; Sections 11(2), 13(1) and 22 which are reproduced below;

*"11(2) In a criminal action the burden of producing evidence, when it is on the prosecution as to any fact which is essential to guilt, requires the prosecution to produce sufficient evidence so that on all the evidence a reasonable mind could find the existence of the fact beyond reasonable doubt."*

*"13(1) (1) In any civil or criminal action the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyondreasonable doubt."*

*"22 In a criminal action a presumption operates against the accused as to a fact which is essential to guilt only if the existence of the basic facts that give rise to the presumption are found or otherwise established beyond reasonable doubt, and thereupon, in the case of a rebuttable presumption, the accused need only raise a reasonable doubt as to the existence of the presumed fact."*

In the book Essentials of the Ghana Law of Evidence, S.A Brobbey deals extensively with the standard of proof required in criminal trials from pages 48 to 55. He states inter alia;

"Proof beyond reasonable doubt does not mean that there should be no doubt whatsoever in the case presented by the prosecution. It means that by the end of the trial, the prosecution must prove every element of the offence or the charge (but not all the facts) and show that the defence is not reasonable……

The consideration for the principle of proof beyond reasonable doubt can be illustrated this way: If there is any element of the charge which is essential for the accused to be convicted, that element should be established to the satisfaction of the trier of facts in such a manner that a reasonable mind could conclude that the accused is guilty of the offence or that the existence of the facts constituting the charge is more probable than its non- existence."

What does proof beyond reasonable doubt really entail?

In the case of **OSEI V. THE REPUBLIC [2009]24 MLRG 203, C.A**; it was held, confirming the long- held view that "proof beyond reasonable doubt does not mean proof beyond a shadow of doubt. The Court would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is so strong as to leave only a remote possibility in his favour which can be dismissed with the sentence, 'of course it is possible, but not at all probable', the case is proved beyond reasonable doubt, but nothing short of that will suffice."

In assessing the evidence, the Court would have to apply what is known as the three-tier test to each of the elements of a crime.

In the case of **THE REPUBLIC v. FRANCIS IKE UYANWUNE[2013] 58 GMJ 162, C.A,** it was held per Dennis Adjei J.A that:

"The law is that the prosecution must prove all the ingredients of the offence charged in accordance with the standard burden of proof; that is to say the prosecution must establish a prima facie case and the burden of proof would be shifted to the accused person to open his defence and in so doing, he may run the risk of non- production of evidence and/ or non-persuasion to the required degree of belief else he may be convicted of the offence. The accused must give evidence if a prima facie case is established else he may be convicted and, if he opens his defence, the court is required to satisfy itself that the explanation of the accused is either acceptable or not. If it is acceptable, the accused should be acquitted, and if it is not acceptable, the court should probe further to see if it is reasonably probable. If it is reasonably probable, the accused should be acquitted, but if it is not, and the court is satisfied that in considering the entire evidence on record the accused is guilty of the offence, the court must convict him. This test is usually referred to as the three- tier test

In the case of ATSU v. THE REPUBLIC [1968] GLR 716 @719 CA, it was said;

*"As a general rule, evidence from the defence is not taken until the court has held that the prosecution has established a prima facie case. This is based upon the well-known principle that it is the prosecution which has an onus to prove the guilt of the person they accuse of an offence, and not the accused who should establish his innocence, the accused should therefore not show his hands until the need arises."*

This means, upon applying the above authorities, that the burden of proof had shifted upon the accused person, upon being called upon to answer to the charges. However, the burden carries a lower standard than that of the prosecution. An accused person,

within the framework of the law, would have the burden of only raising reasonable doubt.

I shall now assess each of the offences that the accused person has been charged with and what the prosecution was required to prove against him, and whether, on the evidence adduced, the charges can be supported.

Section 84 of Act 29 provides as:

A person who unlawfully assaults another person commits a misdemeanour.

Section 85 of Act 29 provides as follows;

1) For the purposes of section 84, "assault" includes
(a)assault and battery,
(b)assault without actual battery, and
(c)imprisonment.

2) An assault is unlawful unless it is justified on one of the grounds mentioned in Chapter One of this Act.

From this distinction outlined under section 85 of Act 29, assault under Section 84 can be assault and battery, assault without actual battery and imprisonment.

Assault and battery has been explained under Section 86 thus;

"A person makes an assault and battery on another person, if without the other person's consent, and with the intention of causing harm, pain, or fear, or annoyance

to the other person, or of exciting the other person to anger, that person forcibly touches the other person."

Assault without actual battery has also been expatiated under Section 87 as;

"A person makes an assault without actual battery on another person, if by an act apparently done in commencement of an assault and battery, the person intentionally puts the other person in fear of an instant assault and battery."

From the facts given by the prosecution, particularly the portion which states;

"Accused got angry and pushed the complainant down. When the complainant got up, Accused kicked her in the abdomen, pulled her out the door thereby depriving her access to the room since then.",this court is minded to focus on the assault and battery provision under Section 86 of Act 29 supra.

From the definition, the elements which Prosecution need to prove in order to maintain a charge of assault and battery are:

1. The Accused forcibly touched the complainant.
2. The touch was without the consent of the complainant.
3. That the touch was intentional
4. That the touch was unlawful.

To start with, on the 14/6/23 the investigator who testified as PW2 tendered in evidence the Investigation Caution Statement and Charge statement of the Accused and without any objection by Counsel for Accused, these documents were admitted into evidence as Exhibits A and B respectively and formed part of the record.

During his testimony, the Accused sought to distance himself from the contents of the statements admitted as Exhibits A and B, claiming he never appended his signature to them. He attributed this alleged oversight to the failings of his former Counsel, who, according to him, neglected to bring the said statements to his attention. However, this Court cannot turn a blind eye to the clear import of Section 6 of the Evidence Act,1975 which mandates that objections to the admissibility of evidence must be raised timeously; at the time the evidence is being offered.

By the time these documents had been admitted into evidence without objection, and the Prosecution had formally closed its case, the ship had long sailed for the Accused to mount such a belated challenge. This Court finds little merit in what now appears to be a last-ditch attempt;an afterthought conveniently draped in blame. Moreso, the Court notes with some incredulity the submission in Defence Counsel's final written address, which seeks to portray the Accused as someone unfamiliar with the English language. The Accused? An ex-serviceman of the United States of America? The Court is not easily swayed by such a narrative, especially when it flies in the face of both logic and record.

Accordingly, the Court shall attach full evidential weight to Exhibits A and B in arriving at its judgment.

In these Exhibits, the Accused narrates the turn of events from when he arrived in Ghana in November 2022,when some thiefs had made away with some fixtures which the complainant feigned no knowledge of though she was resident in the house. That upon searching the chip inside the phone of complainant he saw that complainant was in communication with some other men. That he told the complainant to come to Koforidua on 18/12/22 to manage the hotel and on 11/2/23 he arrived at the hotel with his friend to meet her room untidy, called the security man to clean for him and sent for his wife, the complainant. That while he left his wife and the security man to clean, he sought to escort his friend and met a guest who

informed him of his booking although earlier complainant had told him the hotel was not regularly patronised. That he later saw the complainant entering the bar which he stopped her from doing so. Later he again saw the complainant headed to her room so he followed and asked her not to pick any of the equipment he had bought. According to Accused, he wanted to lock his door while preventing complainant from packing any equipment so there was a struggle between them and Accused succeeded in locking the door.

Indeed the evidence of PW1(complainant) is to the effect that the Accused dragged her from the room, an incident the securityman witnessed. However, the securityman, Ebenezer Osabutey was subpoenaed by the court to testify and he said he did not see the Accused actually hit the complainant or drag her from the room but he did hear shouts of pain from complainan's room. This means that actual direct evidence of what happened between the complainant and Accused was not produced. To the mind of this court, this calls for circumstantial evidence.

**CIRCUMSTANTIAL EVIDENCE**

What this phenomenon is has been explained in simple words by his Lordship Justice Brobbey(as he then was) in his book "Essentials of The Ghana Law Of Evidence at page 253. He stated

"Circumstantial evidence is the fact from which may be inferred, presumed or deduced the existence, non- existence or proof of another fact. Circumstantial evidence is not proof of fact itself. It is the pieces or incidents of fact considered or put together, which provide the basis for drawing conclusion, inference or deduction of the existence or non- existence of a fact.

In the nature of things, many crimes are hardly committed in the full glare of the public. Circumstantial evidence is utilized where direct evidence is not available or where direct evidence is not easy to obtain, typical instance being evidence relating to sexual intercourse such as rape, or defilement of females".

In **Gligah and Atiso v. The Republic (2010) SCGLR 870** the Supreme Court said of circumstantial evidence:

*"Pieces of evidence which if put together made a very strong case against the accused person. It was like a series of small threads and which when put together, made a very strong rope. The same with circumstantial evidence. It was generally accepted that when direct evidence was unavailable, but there were bits and pieces of circumstantial evidence available and when these were put together, they would make a stronger, corroborative and more convincing evidence than direct evidence".*

In the case of **Dogbe v. The Republic (1975) 1 GLR 118** where the accused contended that there was no evidence connecting him to the offence, the Court of Appeal stated of circumstantial evidence:

*"In criminal trials, the identity of the accused as the person who committed the crime might be proved either by direct evidence or by circumstantial evidence of other relevant facts from which it might be inferred by the court. The opportunity on the part of the accused to do the act and his knowledge of circumstances enabling it to be done were admissible to prove identity".*

The authorities emphasize however that for a conviction to be based on circumstantial evidence, the evidence must lead to an irresistible conclusion that guilt is the only inference that can be drawn from the circumstances of the case. There must be only one conclusion, and it is that, the crime was committed by no

other person than the accused and the facts must exclude the probability that the crime was committed by another person.
We may refer to the cases of Duah v. The Republic (1987-88)1 GLR 343 and State v. Anani Fiadjoe (1961) GLR 416.

Where the circumstantial evidence was consistent with the guilt as well as with innocence, the court will have to acquit the accused.

From the turn of events as narrated by the Accused on Exhibit A and B, as at 11/2/23, the fateful day of the event, he had been married with complainant for seven months and this was done in his absence. It is noteworthy the ages of the Accused and complainant; 52 and 29 years resspectively.He arrives in Ghana to meet his house that he left in the care of his wife, ransacked and she claims to know nothing of it. As if that is not enough, Accused allegedly finds complainant chatting with other men. She comes to Koforidua about a month before Accused yet Accused arrives with his friend to the hotel to meet his room untidy and has to commission the security man to clean the room. That he called for his wife to assist the security man in cleaning the room and just as Accused set out to see his friend off, he meets a guest of the hotel contrary to complainant's assertion that the hotel is not frequently patronised.tLater he met the complainant going to the drinking bar and stopped her from entering. Thereafter, he sees the complainant going to her room, he follows her to meet her packing her stuff and he purports to disallow her from taking any of the stuff he had bought which causes a struggle to ensue between the two of them but he eventually succeeds in locking the ldoor.

A holistic assessment of the Accused's own narration reveals a series of events that undoubtedly provoked heightened emotions particularly when viewed against the backdrop of a notable age and physical disparity between the parties. The Court cannot ignore the anger that may have been at play, including perceived betrayal

and lingering frustration. Yet, even more telling is the Accused's own admission of a physical struggle with the Complainant.

The Accused, by all accounts a well-built man,an ex-serviceman, no less, and the Complainant, a slender woman of significantly lesser weight and stature, were clearly mismatched in physical strength. In such an unequal contest, it stretches imagination to suggest that the encounter did end in the Complainant sustaining some degree of touch without her consent.

This Court is firmly convinced that what the Accused describes as a "struggle" was, in fact, a clear manifestation of assault as defined in law. It would be disingenuous to characterise it as anything less. The physical imbalance, coupled with the emotionally charged context, leaves the Court with no doubt that the Complainant was subjected to unlawful force.

One thing worthy of note is the disparity and sharp contrast between the account of events as presented in the ACCUSED person's caution statement and as presented in his witness statement. The Accused person in his witness statement invites this court to believe that he left Koforidua to ACCRA only to hear that a complaint had been made against him when he had no physical altercation with the complainant. In fact,the impression the accused person's witness statement creates is that he has been falsely accused. That is the position this court cannot get behind and indeed the credibility of the accused person is called into question in the face of the stark contrast in his accounts. To the mind of this court, the accused was not able to raise any reasonable doubt or make any inroads, however minute, in the Prosecution's case.The Court, therefore, finds beyond reasonable doubt that indeed there was a degree of touch against the consent of the complainant and thus finds the Accused guilty of Count 1.

With respect to count two which is the offence of Engaging in domestic violence contrary to Section 1(b)(i) of the Domestic Violence Act, 2007, Act 732.

I shall produce verbatim the provisions of Section 1(b)(i) of Act 732 follows;

*"Domestic violence means engaging in the following within the context of a previous or existing domestic relationship:*

*(b) specific acts, threats to commit, or acts likely to result in*

*(i)physical abuse, namely physical assault or use of physical force against another person including the forcible confinement or detention of another person and the deprivation of another person of access to adequate food, water, clothing, shelter, rest, or subjecting another person to torture or other cruel, inhuman or degrading treatment or punishment;"*

Section 2 of the Act defines a domestic relationship as follows:

*"Meaning of domestic relationship*

*1) A domestic relationship means a family relationship, a relationship akin to a family relationship or a relationship in a domestic situation that exists or has existed between a complainant and a respondent and includes a relationship where the complainant*

*(a) is or has been married to the respondent;*

To the mind of this court,the Prosecution was unable to discharge the burden of proof in respect of this offence. Therefore, the Accused person is aquitted and discharged on count 2.

Consequently, the court shall sentence Accused to a fine of 180 penalty units on count 1 or in default, 30 days IHL. The Accused person's travel documents withheld

at the registry of the court as condition precedent to his bail be released to him upon payment of fine or service of sentence.

SGD:

H/W NANA AMA DABBAH FYNN NKANSAH

MAGISTRATE